# Microsoft Privacy Statement

**Last Updated: September 2024**

**What's new?**

***You may notice a new look. In August 2024, we updated our Privacy at Microsoft websites with a modern design built on a more secure platform. You can now find the Microsoft Privacy Statement at microsoft.com/privacy. And, as always, any substantive updates to our Microsoft Privacy Statement are highlighted on the What's New page.***

### Cookies

**Most Microsoft sites use cookies, small text files placed on your device which web servers utilize in the domain that placed the cookie can retrieve later. We use cookies to store your preferences and settings, help with sign-in, provide personalized ads, and analyze site operations. For more information, see the Cookies and similar technologies section of this privacy statement.**

**EU-U.S., UK Extension, and Swiss-U.S. Data Privacy Frameworks**

**Microsoft complies with the EU-U.S., UK Extension to the EU-U.S., and Swiss-U.S. Data Privacy Frameworks. To learn more, see the Where we store and process personal data section, and visit the U.S. Department of Commerce's Data Privacy Framework website.**

**Contact us**

**If you have a privacy concern, complaint, or question for the Microsoft Chief Privacy Officer or EU Data Protection Officer, please contact us by using our web form. For more information about contacting Microsoft, including Microsoft Ireland Operations Limited, see the How to contact us section of this privacy statement.**

## Your privacy is important to us. This privacy statement explains the personal data Microsoft processes, how Microsoft processes it, and for what purposes.

## Microsoft offers a wide range of products, including server products used to help operate enterprises worldwide, devices you use in your home, software that students use at

**school, and services developers use to create and host what's next. References to Microsoft products in this statement include Microsoft services, websites, apps, software, servers, and devices.**

**Please read the product-specific details in this privacy statement, which provide additional relevant information. This statement applies to the interactions Microsoft has with you and the Microsoft products listed below, as well as other Microsoft products that display this statement.**

**Young people may prefer starting with the Privacy for young people page. That page highlights information that may be helpful for young people.**

**For individuals in the United States, please refer to our U.S. State Data Privacy Notice and the Consumer Health Data Privacy Policy for additional information about the processing of your personal data, and your rights under applicable U.S. state data privacy laws.**

## Personal data we collect

**Microsoft collects data from you, through our interactions with you and through our products. You provide some of this data directly, and we get some of it by collecting data about your interactions, use, and experiences with our products. The data we collect depends on the context of your interactions with Microsoft and the choices you make, including your privacy settings and the products and features you use. We also obtain data about you from Microsoft affiliates, subsidiaries, and third parties.**

**If you represent an organization, such as a business or school, that utilizes Enterprise and Developer Products from Microsoft, please see the Enterprise and developer products section of this privacy statement to learn how we process your data. If you are an end user of a Microsoft product or a Microsoft account provided by your organization, please see the Products provided by your organization and the Microsoft account sections for more information.**

**You have choices when it comes to the technology you use and the data you share. When we ask you to provide personal data, you can decline. Many of our products require some personal data to provide you with a service. If you choose not to provide data -required to provide you with a product or feature, you cannot use that product or feature. Likewise, where we need to collect personal data by law or to enter into or carry out a contract with you, and you do not provide the data, we will not be able to enter into the contract; or if this relates to an existing product you are using, we may have to suspend or cancel it. We will notify you if this is the case at the time. Where providing the data is optional, and you choose not to share personal data, features like personalization that use such data will not work for you.**

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## How we use personal data

**Microsoft uses the data we collect to provide you with rich, interactive experiences. In particular, we use data to:**

- **Provide our products, which includes updating, securing, and troubleshooting, as well as providing support. It also includes sharing data, when it is required to provide the service or carry out the transactions you request.**
- **Improve and develop our products.**
- **Personalize our products and make recommendations.**
- **Advertise and market to you, which includes sending promotional communications, targeting advertising, and presenting you with relevant offers.**

**We also use the data to operate our business, which includes analyzing our performance, meeting our legal obligations, developing our workforce, and doing research.**

**In carrying out these purposes, we combine data we collect from**

**different contexts (for example, from your use of two Microsoft products) or obtain from third parties to give you a more seamless, consistent, and personalized experience, to make informed business decisions, and for other legitimate purposes.**

**Our processing of personal data for these purposes includes both automated and manual (human) methods of processing. Our automated methods often are related to and supported by our manual methods. For example, to build, train, and improve the accuracy of our automated methods of processing (including artificial intelligence or AI), we manually review some of the output produced by the automated methods against the underlying data.**

**As part of our efforts to improve and develop our products, we may use your data to develop and train our AI models. Learn more here.**

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## Reasons we share personal data

**We share your personal data with your consent or to complete any transaction or provide any product you have requested or authorized. We also share data with Microsoft-controlled affiliates and subsidiaries; with vendors working on our behalf; when required by law or to respond to legal process; to protect our customers; to protect lives; to maintain the security of our products; and to protect the rights and property of Microsoft and its customers.**

**Please note that, as defined under certain U.S. state data privacy laws, "sharing" also relates to providing personal data to third parties for personalized advertising purposes. Please see the U.S. State Data Privacy section below and our U.S. State Data Privacy Laws Notice for more information.**

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## How to access and control your personal data

**You can also make choices about the collection and use of your data by Microsoft. You can control your personal data that Microsoft has obtained, and exercise your data protection rights, by contacting Microsoft or using various tools we provide. In some cases, your ability to access or control your personal data will be limited, as required or permitted by applicable law. How you can access or control your personal data will also depend on which products you use. For example, you can:**

- **Control the use of your data for personalized advertising from Microsoft, including Xandr, by visiting our opt-out page.**
- **Choose whether you wish to receive promotional emails, SMS messages, telephone calls, and postal mail from Microsoft.**
- **Access and clear some of your data through the Microsoft privacy dashboard.**

Not all personal data processed by Microsoft can be accessed or controlled via the tools above. If you want to access or control personal data processed by Microsoft that is not available via the tools above or directly through the Microsoft products you use, you can always contact Microsoft at the address in the How to contact us section or by using our web form.

We provide aggregate metrics about user requests to exercise their data protection rights via the Microsoft Privacy Report.

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## Cookies and similar technologies

Cookies are small text files placed on your device to store data that can be recalled by a web server in the domain that placed the cookie. We use cookies and similar technologies for storing and honoring your preferences and settings, enabling you to sign in, providing interest-based

**advertising, combating fraud, analyzing how our products perform, and fulfilling other legitimate purposes. Microsoft apps use additional identifiers, such as the advertising ID in Windows described in the Advertising ID section of this privacy statement, for similar purposes.**

**We also use "web beacons" to help deliver cookies and gather usage and performance data. Our websites may include web beacons, cookies, or similar technologies from Microsoft affiliates and partners as well as third parties, such as service providers acting on our behalf.**

**Third party cookies may include: Social Media cookies designed to show you ads and content based on your social media profiles and activities on our websites; Analytics cookies to better understand how you and others use our websites so that we can make them better, and so the third parties can improve their own products and services; Advertising cookies to show you ads that are relevant to you; and**

**Required cookies used to perform essential website functions. Where required, we obtain your consent prior to placing or using optional cookies that are not (i) strictly necessary to provide the website; or (ii) for the purpose of facilitating a communication.**

**Please see the Learn more section below for information about our use of third party cookies, web beacons and analytics services, and other similar technologies on our websites and services. For a list of the third parties that set cookies on our websites, including service providers acting on our behalf, please visit our third party cookie inventory. On some of our websites, a list of third parties is available directly on the site. The third parties on these sites may not be included in the list on our third party cookie inventory.**

**You have a variety of tools to control the data collected by cookies, web beacons, and similar technologies. For example, you can use controls in your internet browser to limit how the websites**

you visit are able to use cookies and to withdraw your consent by clearing or blocking cookies.

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## Products provided by your organization—notice to end users

If you use a Microsoft product with an account provided by an organization you are affiliated with, such as your work or school account, that organization can:

- Control and administer your Microsoft product and product account, including controlling privacy-related settings of the product or product account.
- Access and process your data, including the interaction data, diagnostic data, and the contents of your communications and files associated with your Microsoft product and product accounts.

**If you lose access to your work or school account (in event of change of employment, for example), you may lose access to products and the content associated with those products, including those you acquired on your own behalf, if you used your work or school account to sign in to such products.**

**Many Microsoft products are intended for use by organizations, such as schools and businesses. Please see the Enterprise and developer products section of this privacy statement. If your organization provides you with access to Microsoft products, your use of the Microsoft products is subject to your organization's policies, if any. You should direct your privacy inquiries, including any requests to exercise your data protection rights, to your organization's administrator. When you use social features in Microsoft products, other users in your network may see some of your activity. To learn more about the social features and other functionality, please review documentation or help content**

**specific to the Microsoft product. Microsoft is not responsible for the privacy or security practices of our customers, which may differ from those set forth in this privacy statement.**

**When you use a Microsoft product provided by your organization, Microsoft's processing of your personal data in connection with that product is governed by a contract between Microsoft and your organization. Microsoft processes your personal data to provide the product to your organization and you, and in some cases for Microsoft's business operations related to providing the product as described in the Enterprise and developer products section. As mentioned above, if you have questions about Microsoft's processing of your personal data in connection with providing products to your organization, please contact your organization. If you have questions about Microsoft's business operations in connection with providing products to your organization as provided in the Product Terms, please contact**

**Microsoft as described in the How to contact us section. For more information on our business operations, please see the Enterprise and developer products section.**

**For Microsoft products provided by your K-12 school, including Microsoft 365 Education, Microsoft will:**

- **not collect or use student personal data beyond that needed for authorized educational or school purposes;**
- **not sell or rent student personal data;**
- **not use or share student personal data for advertising or similar commercial purposes, such as behavioral targeting of advertisements to students;**
- **not build a personal profile of a student, other than for supporting authorized educational or school purposes or as authorized by the parent, guardian, or**

student of appropriate age; and

- require that our vendors with whom student personal data is shared to deliver the educational service, if any, are obligated to implement these same commitments for student personal data.

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## Microsoft account

With a Microsoft account, you can sign in to Microsoft products, as well as those of select Microsoft partners. Personal data associated with your Microsoft account includes credentials, name and contact data, payment data, device and usage data, your contacts, information about your activities, and your interests and favorites. Signing in to your Microsoft account enables personalization and consistent experiences across products and devices, permits you to use cloud data storage, allows you to make payments using payment instruments stored in your Microsoft account, and enables other features.

**There are three types of Microsoft account:**

- **When you create your own Microsoft account tied to your personal email address, we refer to that account as a personal Microsoft account.**
- **When you or your organization (such as an employer or your school) create your Microsoft account tied to your email address provided by that organization, we refer to that account as a work or school account.**
- **When you or your service provider (such as a cable or internet service provider) create your Microsoft account tied to your email address with your service provider's domain, we refer to that account as a third-party account.**

**If you sign into a service offered by a third party with your Microsoft account, you will share with that third party the account data required by that service.**

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## Collection of data from children

**For users under the age of 13 or as specified by law in their jurisdiction, certain Microsoft products and services will either block users under that age or will ask them to obtain consent or authorization from a parent or guardian before they can use it, including when creating an account to access Microsoft services. We will not knowingly ask children under that age to provide more data than is required to provide for the product.**

**Once parental consent or authorization is granted, the child's account is treated much like any other account. Learn more about personal and school accounts in the Microsoft account section of the Privacy Statement and Microsoft Family Safety in the product-specific section. The child can access communication services, like Outlook and Skype, and can freely communicate and**

share data with other users of all ages. Parents or guardians can change or revoke the consent choices previously made. Learn more about parental consent and Microsoft child accounts. As the organizer of a Microsoft family group, the parent or guardian can manage their child's information and settings on their Family Safety page and view and delete a child's data on their privacy dashboard. Accounts that require parental consent to be created are automatically included as part of the family group of the individual who provided the consent for account creation. For child accounts that do not require parental consent to be created, (e.g., for children who are over the age at which parental consent is legally required), the parent or guardian may still use a family group, but must add the child account to their family group after the account is created. Select Learn more below for more information about how to access and delete child data and information about children and Xbox profiles.

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## Other important privacy information

Below you will find additional privacy information, such as how we secure your data, where we process your data, and how long we retain your data. You can find more information on Microsoft and our commitment to protecting your privacy at Microsoft Privacy.

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## Artificial Intelligence and Microsoft Copilot capabilities

Microsoft leverages the power of artificial intelligence (AI) in many of our products and services, including by incorporating generative AI features such as Microsoft Copilot capabilities. Microsoft's deployment and use of AI is subject to Microsoft's AI Principles and Microsoft's Responsible AI Standard, and Microsoft's collection and use of

**personal data in developing and deploying AI features is consistent with commitments outlined in this privacy statement. Product-specific details provide additional relevant information. You can find out more about how Microsoft uses AI here.**

**Microsoft Copilot capabilities. Microsoft Copilot is Microsoft's everyday AI companion, and is designed to help you achieve more through a single experience that runs across devices, understanding relevant context on the web, on your PC, and across apps to bring you the right skills at the right time. With the help of Copilot, users can start a draft of a new Word document, generate a PowerPoint presentation, quickly find the answers to complex search queries online, find relevant documents or other personal content, or be inspired to create new songs, stories, images, or other content, among other tasks. Copilot is a family of services, and Microsoft's collection and use of data may differ depending on the service and the intended functionality in a given scenario.**

**The Copilot website and app (available on iOS and Android) is the core of the consumer Copilot experience. Within this core experience, users can search the web, create text, images, songs, or other outputs, or engage with other features, such as plugins. On the website and in the app, users enter "prompts" that provide instructions to Copilot (e.g., "Give me recommendations for a restaurant that accommodates parties of 10 near me"). In order to provide a relevant response, Copilot will use this prompt, along with the user's location, language, and similar settings, to formulate a helpful response. In some markets, authenticated users can choose to allow Copilot to have access to prior prompt history to better personalize the product. The consumer Copilot product uses the data collected to provide and improve the Copilot services, including to provide relevant advertising. Users who are signed-in to their account can manage their prompt history in product and on the Microsoft**

**Privacy Dashboard, and can adjust their location, language, and other settings in the product.**

**Copilot also appears as an assistant within other Microsoft consumer products, such as Bing and Microsoft Edge. In those situations, data processing activities generally align with those products' primary uses. For example, Copilot in Bing's use and collection of personal data is consistent with Bing's core web search offering as described in the Search and Browse section of this privacy statement. More information about Copilot in Bing is available at Copilot in Bing: Our approach to Responsible AI. In Microsoft Edge, Copilot appears in the sidebar experience and can help the user complete tasks related to the webpages they visit (e.g., "summarize this page"). This data is used consistent with the Microsoft Edge section of this privacy statement.**

**Copilot Pro is another consumer Copilot offering, and offers subscribers priority access to the**

**very latest models, improved image creation abilities, and access to Copilot in Microsoft Word, PowerPoint, OneNote, Excel, and Outlook. The main Copilot Pro website and app has similar data collection, use, and controls as consumer Copilot, as described above. When Copilot is integrated with Microsoft 365 products, Copilot data collection is consistent with how data collection and use is described in the Productivity and Communications section of this privacy statement.**

**There are also Copilot offerings designed for enterprise users. When enabled by an eligible enterprise, users logged in with their Entra ID who want to access consumer Copilot services are offered Copilot with Commercial Data Protection, which minimizes data collection and use consistent with the expectations of enterprise users. More information on Copilot with Commercial Data Protection is available here.**

**Microsoft Copilot for Microsoft 365 enterprise offers enterprise-grade**

**data protection along with access to the corporate graph, Copilot within Microsoft 365 and Teams, and additional customization features. Data collection and use in Copilot for Microsoft 365 enterprise is consistent with the practices described in the Enterprise and Developer Products section of this privacy statement.**

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## Enterprise and developer products

**Enterprise and Developer Products are Microsoft products and related software offered to and designed primarily for use by organizations and developers. They include:**

- **Cloud services, referred to as Online Services in the Product Terms, such as Microsoft 365 and Office 365, Microsoft Azure, Microsoft Dynamics365, and Microsoft Intune for which an organization (our customer) contracts with Microsoft for the services ("Enterprise Online Services").**

- **Other enterprise and developer tools and cloud-based services, such as Azure PlayFab Services (to learn more see Azure PlayFab Terms of Service).**
- **Server, developer, and hybrid cloud platform products, such as Windows Server, SQL Server, Visual Studio, System Center, Azure Stack and open source software like Bot Framework solutions ("Enterprise and Developer Software").**
- **Appliances and hardware used for storage infrastructure, such as StorSimple ("Enterprise Appliances").**
- **Professional services referred to in the Product Terms that are available with Enterprise Online Services, such as onboarding services, data migration services, data science services, or services to supplement existing features in the Enterprise Online Services.**

*In the event of a conflict between this Microsoft privacy statement and the terms of any agreement(s) between a customer and Microsoft for Enterprise and Developer Products, the terms of those agreement(s) will control.*

*You can also learn more about our Enterprise and Developer Products' features and settings, including choices that impact your privacy or your end users' privacy, in product documentation.*

**If any of the terms below are not defined in this Privacy Statement or the Product Terms, they have the definitions below.**

**General. When a customer tries, purchases, uses, or subscribes to Enterprise and Developer Products, or obtains support for or professional services with such products, Microsoft receives data from you and collects and generates data to provide the service (including improving, securing, and updating the service), conduct our business operations,**

**and communicate with the customer. For example:**

- **When a customer engages with a Microsoft sales representative, we collect the customer's name and contact data, along with information about the customer's organization, to support that engagement.**
- **When a customer interacts with a Microsoft support professional, we collect device and usage data or error reports to diagnose and resolve problems.**
- **When a customer pays for products, we collect contact and payment data to process the payment.**
- **When Microsoft sends communications to a customer, we use data to personalize the content of the communication.**
- **When a customer engages with Microsoft for professional services, we collect the name and contact data of the customer's designated point of contact**

and use information provided by the customer to perform the services that the customer has requested.

The Enterprise and Developer Products enable you to purchase, subscribe to, or use other products and online services from Microsoft or third parties with different privacy practices, and those other products and online services are governed by their respective privacy statements and policies.

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## Productivity and communications products

Productivity and communications products are applications, software, and services you can use to create, store, and share documents, as well as communicate with others.

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## Search and browse

Search and browse products connect you with information and intelligently sense, process, and act on information—learning and adapting over time. For more information on artificial intelligence and Copilot capabilities in Microsoft's search products, please see Artificial Intelligence and Microsoft Copilot capabilities section above.

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## Windows

Windows is a personalized computing environment that enables you to seamlessly roam and access services, preferences, and content across your computing devices from phones to tablets to the Surface Hub. Rather than residing as a static software program on your device, key components of Windows are cloud-based, and both cloud and local elements of Windows are updated regularly, providing you with the latest improvements and features. In order to provide this

**computing experience, we collect data about you, your device, and the way you use Windows. And because Windows is personal to you, we give you choices about the personal data we collect and how we use it. Note that if your Windows device is managed by your organization (such as your employer or school), your organization may use centralized management tools provided by Microsoft or others to access and process your data and to control device settings (including privacy settings), device policies, software updates, data collection by us or the organization, or other aspects of your device. Additionally, your organization may use management tools provided by Microsoft or others to access and process your data from that device, including your interaction data, diagnostic data, and the contents of your communications and files.**

**The Windows Settings, formerly known as PC Settings, is an essential component of Microsoft Windows. It provides a convenient interface for adjusting user**

**preferences, configuring the operating system, and managing connected devices so that you can manage user accounts, adjust network settings, and personalize various aspects of Windows. Windows provides a mechanism for apps to access various device capabilities such as the device's camera, microphone, location, calendar, contacts, call history, messages and more, while controlling access to your personal data. Each capability has its own privacy settings page in Windows settings, so you can control which apps can use each capability. Here are some key features of Settings:**

1. **Customization: You can personalize various aspects of Windows, including the look and feel, language settings, and privacy options. Windows settings uses your microphone when controlling the volume, camera when using integrated camera and location to change brightness at night time to help you customize your Windows.**

2. **Peripheral Management: Install and manage peripherals such as printers, monitors, and external drives.**
3. **Network Configuration: Adjust networking settings, including Wi-Fi, Ethernet, cellular and VPN connections and will use physical MAC address, IMEI and mobile number if device supports cellular.**
4. **Account Management: Add or remove user accounts, change account settings, and manage sign-in options.**
5. **System-Level Options: Configure display settings, notifications, power options, manage list of installed apps and more.**
6. **Privacy & security management: configure your privacy preferences such as location, collection of diagnostic data etc. Fine-tune which individual apps and services can access device capabilities by turning them on or off.**

For more information about data collection in Windows, see Data collection summary for Windows. This statement discusses Windows 10 and Windows 11 and references to Windows in this section relate to those product versions. Earlier versions of Windows (including Windows Vista, Windows 7, Windows 8, and Windows 8.1) are subject to their own privacy statements.

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## Entertainment and related services

Entertainment and Related Services power rich experiences and enable you to access a variety of content, applications and games.